

THE UNITED REPUBLIC OF TANZANIA
JUDICIARY
IN THE HIGH COURT OF TANZANIA
MBEYA DISTRICT REGISTRY
AT MBEYA
DC. CRIMINAL APPEAL NO. 26 OF 2021
*(Arising from the Court of Resident Magistrate of Mbeya at Mbeya
in Criminal Case No. 91 of 2013)*

EMMANUEL MARTIN.....1ST APPELLANT
JOHN WAZIRI.....2ND APPELLANT

VERSUS

REPUBLIC.....RESPONDENT

JUDGMENT

Dated: 26th October & 29th November, 2021

KARAYEMAHA, J

On 4th December, 2014 the appellants, namely, Emmanuel Martin and John Waziri (herein the 1st, and 2nd appellants) were arraigned before the Court of Resident Magistrate of Mbeya at Mbeya along with Ally Salum and Braison Sanga (formerly the 1st and 3rd accused persons) where they were charged with the offence of armed robbery allegedly committed jointly and together by them. By a charge sheet lodged in the trial court on 17/06/2013, the appellants faced one count of Armed Robbery contrary to **section 287A** of the Penal Code, Cap. 16 (R.E. 2002) [now R.E. 2019]. The allegation is that on 05/05/2013 at Songwe Prison within the City and Region of Mbeya, they stole a police gun with

serial number TZPS39847164020 make SAR the property of the United Republic of Tanzania, Songwe prison. It was alleged further that at or immediately after such incident appellants did use a machete, to obtain or retain the aforesaid gun or overcome resistance from WDR Ambrose who was in possession of the said gun.

In a bid to prove the charge, the prosecution summoned 14 witnesses, namely, Ambrose Ngonyani (PW1), Nuru Nyangasa (PW2), SP Laisack Mfaume (PW3), Gideon Mzee (PW4), D5517 D/S Daniel (PW5), E2119 D/CPL Seif (PW6), 382 D/CPL Simon (PW7), Kisa Kapila (PW8), Tanganyika Yisambi (PW9), Alice Mkasela (PW10), A6011 SGT Anjane (PW11), Daudi Kunjowa Mbembela (PW12), Joseph Paulo Mwambapa (PW13) and A7694 SGT John (PW14). In addition, 8 exhibits, namely, a machete, a gun, cautioned statements, extra judicial statements, a gun handing over register and documents in respect of parole process and recommendations were tendered and admitted as exhibits P1, P2, P3, P4, P5, P6, P7 and P8 respectively.

Briefly, the substance of the prosecution evidence was that PW1 is a Police Officer stationed at Tukuyu Prison. By 2013 was stationed at Songwe Prison. On 05/05/2013 around 8:00hours PW1 as usual collected a gun from PW11, the armoury keeper, and went to his guard point. Later, during break time, he went to his house to have dinner.

Shortly after having dinner, he felt unhealthy. Therefore, he placed the gun on the bed and went to the toilet to release himself. No sooner had he returned from the toilet and picked the gun than people invaded and struggled to snatch the gun from him. On resisting, one of those people cut his left hand with a machete. At the same time his wife was put to mute. PW2, his co-officer turned up to his rescue after hearing the commission but robbers had already left with a gun leaving PW1 seriously injured. PW2 relayed information to OCD who immediately formed a task force. On brainstorming, the task force figured out prisoners who were released from prison through parole process. Since the 1st appellant was singled out, he was arrested. On being probed, he mentioned his colleagues. When they were all arrested, they told the police officers that John Waziri kept the gun. On 29/05/2013 John's house was searched by police officers including PW5 and found the gun in question. On 30/05/2013 all suspects were taken to the scene of the crime. After inspecting the same and interrogating them, the suspects confessed to commit the said offence before PW3, PW4, PW9 and PW12.

On their defence, appellants distanced themselves from the offences throughout the trial.

Apart from their denial, the trial court concluded that the prosecution proved the case beyond reasonable doubt. Consequently, appellants were convicted and finally sentenced to serve a term of 30 years imprisonment.

To express their disagreement with the trial court's decision, the appellants appealed to this court with a petition raising eight (8) grounds. Nevertheless, for reasons to be apparent shortly, for the purpose of this judgment, shall not reproduce them herein.

On 26/10/2021 when this appeal was called on for hearing, appellants appeared in person, unrepresented whereas Mr. Baraka Mgaya, learned State Attorney, represented his usual client the respondent republic.

When the appellants were invited to address this court on their grounds of appeal, they did not have much to submit. They relied on the grounds of appeal and finally prayed the court court to consider them and allow their appeal.

In his reply, Mr. Baraka preambled his submission by vehemently opposing the appeal in its entirety and argued grounds of appeal seriatim.

Replying on ground one, Mr. Baraka submitted that when the appellants were arraigned in the trial Court in 2013, section 287A of the Penal Code had already been amended and incorporated in Misc. Amendment No. 03 of 2011 via section 10A. Therefore, he found this complaint baseless because the trial court properly adhered to the law.

Submitting in respect of ground two where the appellants faulted the trial court for relying on exhibit P1 (PF3) which was admitted in contravention of section 240 (3) of the Criminal Procedure Act [Cap 20 R.E 2019] (herein the CPA), the respondent's learned Counsel conceded and stated that being admitted during the preliminary hearing whereby the 1st accused person pleaded guilty, the doctor was not called for cross-examination again. Nevertheless, the learned State attorney quickly observed that since the 1st accused didn't object, he was not prejudiced. He, moreover, stated further that the prosecution had a singular duty of proving the ingredients of armed robbery not grievous harm. In view of the foregoing, he saw no need of a PF3 to prove the offence of armed robbery.

With regard to the issue of identification raised under ground three and the complaint that the prosecution failed to prove this case beyond reasonable doubt under ground eight, the learned State Attorney

admitted that PW1 was unable to identify his assailants as reflected at page 14 and 15 of the proceedings. He, however, held the view that the appellants were linked with the commission of this offence by their oral confessions and the evidence leading to the discovery of the gun. He argued further that oral confession by suspect is enough to ground conviction. He sought aid and relied on the decisions of the CAT in cases of ***Posolo Wilson @ Mwalyengo v R***, Criminal Appeal No. 613 of 2013 at page 7 and ***Rashid Roman Nyerere v R***, Criminal Appeal No. 105 of 2014 at page 17-18 (both unreported). He added that the ingredients of the offence were well stated by PW1 who testified that bandits were armed with a machete.

On evidence leading to a discovery of the gun, Mr. Baraka held the view that such evidence even if it stands alone warrants conviction of the accused persons. To back up his proposition, he cited the case of ***Michael Mgowole & another v R***, Criminal Appeal No. 205 of 2017 at page 28 (unreported).

Responding on the 4th ground which revolves around the 1st appellant's complaint that his cautioned statement was wrongly admitted by the trial court, Mr. Baraka readily conceded and argued that the State Attorney who prayed to tender it had no capacity to do so.

Instead, he stated it was PW7 who had legal capacity to tender the 1st appellant's cautioned statement. To fortify his position, he referred this court to the case of ***Kifaru Juma Kifaru & others v R***, Criminal Appeal No. 126 of 2018 at page 12 (unreported). He then prayed the same to be expunged from the record.

With regard to ground six through which the 1st appellant fronted his complaint that he was convicted because he was suspected to be a prisoner, the learned State Attorney responded that trial court's judgment bears no sentence indicating that the trial magistrate relied on such suspicion.

On ground seven Mr. Baraka admitted from the wake that the appellants' defence evidence was not considered. Apart from that he beseeched this court (1st appellate court) to step in the trial court's shoes and re – evaluate the evidence and come out with its independent decision. In this he sought reliance in the case of ***Prince Charles Junior v R***, Criminal Appeal No. 250 of 2014 at page 8-9 (unreported).

After submitting as such, it was the learned State Attorney's observation that in composing the judgment, the trial court contravened section 312 (1) of the CPA. He submitted that after the trial Magistrate had framed six (6) issues, he concluded that he was satisfied that the

prosecution proved the case beyond doubt. without giving reasons, he convicted the appellants. The learned counsel urged this court to re-evaluate the whole evidence and come to its independent decision.

In their respective rejoinder, the appellants stated that they had nothing to add.

After having carefully gone through the grounds of appeal and submissions by learned State Attorney, for the reasons which shall be given in the course, I will deliberate on grounds number seven and the State Attorney's observation made under section 312 Of the CPA. The main complaint arising from the said ground and observation is that the trial magistrate failed to evaluate the evidence adduced by the parties before reaching her conclusion. My instant response is that there is nothing to evaluate because no evidence was evaluated.

However, with a view of ascertaining as to whether there is truth in the raised concerns, this court dutifully went through the judgment of the trial court and found out that the trial magistrate did not, in any way consider the evidence from both parties. She just narrated what every prosecution witness said in his or her testimony without analysing and evaluating the said evidence. She did not do so for the evidence given by the defence side as well.

In law, failure to evaluate evidence by the trial court leads to injustice on the parties, especially the party whose interests are adversely affected; in this case, the appellants. The duty of the Magistrate is not only to hear and receive the evidence from both parties, but also to take up that evidence, evaluate it and finally reach a considered conclusion. Failure to do so renders the judgment, conviction and orders arising from it nullity.

In the case of ***Shija Masawe v R***, Criminal Appeal No. 158 of 2007 CAT - DSM (Unreported) it was held inter alia that

"... in writing Judgment, the judge or magistrates will not only have to summarise and analyse the body of evidence and the law, but also to evaluate in order to determine its worth, credibility and significance by using the legal standards of admissibility, burden and standards of proof and weight of such evidence for both prosecution and defence in criminal cases and the parties in civil cases."

Similarly, in the case of ***Republic v Alphonse Jackson***, Criminal Appeal Case No. 87 of 2019, CAT Mbeya dated 24 February, 2020; the principle in respect of the evaluation of evidence was once again expounded as follows:

"The law is clear that, and it has occasionally held so by the court in various cases that before any court makes its decision and Judgment, the evidence of both parties must be considered, evaluated and reasoned in the judgment."

In the matter at hand, the trial court's judgment only contains a summary of the prosecution evidence followed by a finding that the same undisputedly establishes the offences that the appellants were charged with. Nothing more. It is reflected in the evidence at page 14 that after summarising the evidence by both parties and framed four (4) issues, she stated as follows, I quote:

"Therefore the bases of conviction in this matter is because there is watertight evidence to show that, the 2nd, 3^d and 4th accused persons on the material day were committed (sic) the offence of Armed Robbery Contrary to Section 287A of the Penal Code [Cap. 16 RE 2002] as charged. Therefore this Court finds the 2nd, 3^d and 4th accused persons guilty of the office (sic) charged and are hereby convicted to the same offence as charged."

Sgd: RM

1/12/2014

I gather from the holding in ***Republic v Alphonse Jackson*** (supra) that it is trite law that the judgment must show how the

evidence has been evaluated with reasons with a view to determine its credibility and cogency.

There was no evaluation and analysis of the evidence before the court had concluded that the appellants were guilty and convicted them. The judgment, therefore, falls short of the requirement of section 312 of the CPA. The non-compliance with the above section of the CPA renders the judgment incurable therefore crumbles the whole judgment.

On the strength of the foregoing, it is my considered view that the duty of any decision maker to compose judgment includes the duty to analyse the evidence, evaluate the same, look into its relevance and applicability. It also extends to looking into the credibility and cogency of the witnesses and last giving the reasons of the decision. In this case, it is unfortunately that the trial court abdicated that duty. At any rate this abdication denies this court on appeal the materials to act upon in consideration of the appeal.

I am aware that being the first appellate court, this court is entitled to step into the shoes of the trial court and evaluate evidence. However, since that evaluation involves the consideration of the demeanour and credibility of the witnesses, I find the trial court to be better positioned to do the job.

That said, I hereby return the case to the trial court for the magistrate with competent jurisdiction to recompose the judgment in accordance with the dictates of section 312 of Criminal Procedure Act [Cap 20 R.E 2002]. After recomposing the judgment as directed, the same be delivered to the parties and whoever will be dissatisfied will have the right to appeal against that judgment.

As this ground suffices to dispose of this appeal as it has, though not on the merit of the case, there is no need for this court to engage itself on the other grounds in the petition of appeal. In the fine, this court allows the appeal with the instruction as indicated above. The appellant be resurfaced before the trial court on being summoned for receiving the judgment as directed.



DATED at **MBEYA** this 29th day of November, 2021

A handwritten signature in blue ink, appearing to read "J. M. Karayemaha", is written above a horizontal line.

J. M. KARAYEMAHA
JUDGE